

25STCV06595 25STCV06595

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F14%2F2026

Source SHA-256: 1be31d8c96988519b2ea9d23542a1c277ddadc11b67484631197f527bfc7245d

Case Number: 25STCV06595 Hearing Date: July 14, 2026 Dept: 224

Roadrunner vs. Grigor Oganessian

FACTS OF THE CASE:

Roadrunner Financial, Inc. alleges that defendant Grigor Oganessian defaulted on a retail installment contract for the purchase of a 2023 Vanderhall Venice GTS by failing to make the April 7, 2024 payment and all subsequent monthly payments, leaving an unpaid balance of \$46,620.06. The complaint asserts that Roadrunner holds a perfected first-priority security interest in the vehicle and is entitled to immediate possession because the defendant has wrongfully retained and concealed it despite demand for its return. Roadrunner seeks a writ of possession for the vehicle, damages for the unpaid contract balance, interest, attorneys' fees, and costs.

PROOF OF SERVICE/DEFAULT:

Default entered 12/4/25,

PRINCIPAL REQUESTED: \$ 46,620.06

COSTS: \$ 600.40

ATTORNEY'S FEES: \$ 1,125.00

MINUS CREDITS ACKNOWLEDGED \$ 3,202.04

TOTAL: \$ 45,143.36

ANALYSIS:

Documentary evidence supporting amount requested has been provided. (See 585 Decl. Exhs. A-E)

Plaintiff has dismissed doe defendants.

585 Declaration has been provided.

Complaint prays for attorney's fees.

Proof of proper address for service is provided.

A proposed judgment is provided (JUD-100).

Memorandum of costs is filled out on the CIV-100 form.

Plaintiff now contends that it "has received a Vehicle Service Contract Return Premium, which credited the Defendant's account \$3,202.04," delineated as a "Credit Acknowledged" in the CIV-100, and reducing the balance by the same amount.

Prior and remaining deficiencies in the default judgment package::

No attorney's fees calculation.

DISPOSITION:

On July 12, 2026, the Court issued a tentative ruling identifying the following deficiencies:

Plaintiff still has not provided an adequate calculation of attorney's fees. The original 585 Declaration only provides that "Plaintiff is entitled to reasonable attorneys' fees per default schedule in the sum of \$1,125.00." (Kelly Decl. ¶12) However, this figure does not appear to be accurately calculated in accordance with LASC Local Rule 3.214. Nor is there any explanation as to how this figure was calculated at all.

Plaintiff now submits evidence that the attorneys' fees in the amount of \$1,125.00 "represent attorney time spent meeting and conferring with Plaintiff; reviewing and analyzing records pertaining to the Court; preparing the Complaint, and other pleadings filed in this case; appearing and attending hearing; and miscellaneous legal work." (Singer Decl. ¶ 10).

The Court notes that Plaintiff's fees request does not comply with the schedule provided in LASC Local Rule 3.214(a), as there is no calculation in accordance with the schedule. "An application for a fee greater than listed in the foregoing schedule because of extraordinary services must include an itemized statement of the services rendered or to be rendered." (LASC Local Rule 3.214(d).) Here, Plaintiff's summary of time spent is not sufficiently itemized, including the amount of time spent, or amount incurred, on each task, such that the Court can determine whether the amount requested is warranted. Further, there is no indication that the services provided were "extraordinary" such that a greater amount than that provided by LASC Local Rule 3.214(a) should be awarded.

Accordingly, the Court declines to award the requested attorney's fees.

Default Judgment is otherwise ENTERED in the amount of \$44,018.36. (The Court will strike out the request for fees in the JUD-100, and sign the Proposed Judgment.)

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.